

BLUE SEAT STUDIOS

Course License Agreement — Higher Education

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7.1 Termination for Cause

BSS may terminate this Agreement immediately upon written notice if:

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- Licensee modifies or creates derivative works from any Licensed Content or BSS Characters;
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10. Indemnification

Licensee shall indemnify, defend, and hold harmless BSS and its officers, employees, and agents from and against any claims, damages, losses, and expenses (including reasonable attorneys' fees) arising out of Licensee's breach of this Agreement or unauthorized use of the Licensed Content.

11. Governing Law and Dispute Resolution

This Agreement shall be governed by and construed in accordance with the laws of the State of Rhode Island, without regard to its conflict of law principles. Any dispute arising hereunder shall be resolved in the state or federal courts located in Providence County, Rhode Island, and each party consents to personal jurisdiction therein.

12. General Provisions

- Entire Agreement: This Agreement, together with the applicable Proposal, constitutes the entire agreement between the parties and supersedes all prior understandings regarding its subject matter.
- Amendment: This Agreement may only be modified by a written instrument signed by authorized representatives of both parties.
- Waiver: Failure to enforce any provision shall not constitute a waiver of future enforcement.
- Severability: If any provision is held unenforceable, the remaining provisions shall remain in full force.
- Notices: Notices shall be in writing and sent to the addresses set forth in the Proposal.

- Assignment: Licensee may not assign or transfer this Agreement without BSS's prior written consent. BSS may assign this Agreement in connection with a merger or sale of substantially all of its assets.
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